

MEMORANDUM TO THE FILE

**Subj: JUSTIFICATION FOR USE OF OTHER THAN FULL AND OPEN
COMPETITION
FOR A FAR PART 13 ACQUISITION UNDER THE SIMPLIFIED
ACQUISITION THRESHOLD**

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

The required brand name item is: King Sousaphone model 2350SP. This sousaphone is to be used for ceremonial band and small ensemble performances by the Parris Island Marine Band.

**III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN
COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:**

A. ONLY ONE RESPONSIBLE SOURCE *(select all that apply)*:

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.
3. OTHER REASONS..

B. X BRAND NAME

1. Matching Our Current Equipment: Maintaining uniformity in our equipment is essential for achieving a cohesive and harmonious sound within the band, as well as storage, transportation, and instrument cases. The current cases the Parris Island Marine Band owns are custom fit to the King

2350s Sousaphone. Any deviation from this model will require the need for new cases. Since we currently have King Sousaphones in our inventory, we will be phasing out old inventory with the King 2350sp Sousaphones. This will ensure that all our musicians are playing instruments with consistent characteristics. This harmonization not only enhances the overall sound quality but also fosters a sense of unity and professionalism within our band.

2. Seamless Integration with Naval School of Music Training: King 2350sp Sousaphones are already in use at the Naval School of Music during the training pipeline. This establishes a crucial consistency and familiarity for our musicians. Transitioning from training to performances with the same instruments eliminates the learning curve and ensures that our musicians are well-prepared for their duties, guaranteeing a smooth and polished performance.
3. Unmatched Lightweight Design: King 2350sp Sousaphones have gained renown for their exceptionally lightweight construction. In the demanding and physically taxing environment of military band performances, this advantage cannot be understated. The band previously used Conn 20k Sousaphones which weighed over 29 pounds. The King 2350sp weighs only 24 pounds. A sousaphone sits on one shoulder and the weight is distributed unevenly. This can eventually lead to back, neck and shoulder problems. Musicians will appreciate the reduced fatigue and increased mobility these instruments provide, ensuring that they can maintain peak performance levels throughout extended parades and concerts.
4. Innovative Disassembly for Cleaning: A critical aspect of maintaining musical instruments is their ease of cleaning and maintenance. The King 2350sp Sousaphones set themselves apart by featuring a main branch that can be easily disassembled. This innovative design streamlines the cleaning process, making it more efficient and ensuring that our instruments remain in pristine condition. Sousaphones are traditionally soldered together which creates difficulty in reaching tubes which accumulate debris and condensation. Easier access to the slide tubes increases cleaning capabilities and reduces the risk of dezincification, more commonly known as "red rot." Once brass begins to dezincify, the only way to fix the instrument is to replace the part. Cleanliness is paramount

for the longevity of the instruments and the quality of sound produced.

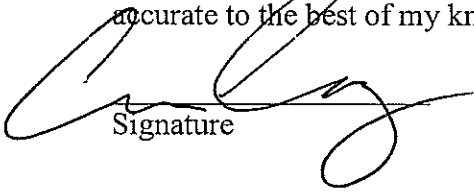
5. Long-Term Investment: Investing in King 2350sp Sousaphones is a prudent financial decision. These instruments are not only known for their initial quality but also for their durability. With proper care, they will provide reliable service for the duration of the 7-year periodic replacement plan, minimizing the need for frequent replacements and associated expenses.
6. In conclusion, the decision to invest in King 2350sp Sousaphones aligns perfectly with our training practices at the Naval School of Music and our current equipment inventory. The King 2350sp Sousaphones represent the perfect balance between performance excellence and practicality. Their lightweight design, ease of cleaning, reputation for quality, enhanced performance capabilities, and long-term value make them the ideal choice to elevate our musical performances and ensure the best possible experience for our musicians and audiences alike.

C. URGENT AND COMPELLING. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:

V. CERTIFICATIONS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

 Signature SSGT CAMERON S. MURRAY / 24 OCT 25
Name (Printed) / Phone # 919 241 5933 Date

B. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature

Name (Printed) / Phone #

Date